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Case Number: 24PSCV02469 Hearing Date: September 1, 2026 Dept: 6

CASE

NAME: City

of Azusa v. Livia Gonzalez, et al.

Plaintiff

City of Azusa's Motion to Appoint a Receiver Pursuant to California Health and Safety Code, section 17980.7(c)

TENTATIVE

RULING

The Court GRANTS Plaintiff City of Azusa's motion to appoint a receiver pursuant to California Health and Safety Code, section 17980.7(c).

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a public nuisance and receivership action. On July 31, 2024, plaintiff City of Azusa, a California Municipal Corporation, on behalf of the People of the State of California (Plaintiff) filed this action against defendants Livia Gonzalez (Livia), George Gonzalez (George)[1] (collectively, Defendants), and Does 1 through 25, alleging causes of action for nuisance per se and for appointment of a receiver pursuant to Health and Safety Code Section 17980.7. On August 15, 2024, George filed a general denial.

On March 4, 2025, the court clerk entered default against Livia.

On July 20, 2026, Plaintiff moved to appoint a receiver pursuant to California Health and Safety Code, section 17980.7(c). George did not oppose the motion.

LEGAL STANDARD

If any building is maintained in a manner that violates any provisions of this part, the building standards published in the State Building Standards Code relating to the provisions of this part, any other rule or regulation adopted pursuant to the provisions of this part, or any provision in a local ordinance that is similar to a provision in this part, and the violations are so extensive and of such a nature that the health and safety of residents or the public is substantially endangered, the enforcement agency may issue an order or notice to repair or abate pursuant to this part. Any order or notice pursuant to this subdivision shall be provided either by both posting a copy of the order or notice in a conspicuous place on the property and by first-class mail to each affected residential unit, or by posting a copy of the order or notice in a conspicuous place on the property and in a prominent place on each affected residential unit. The order or notice shall include, but is not limited to, all of the following:

(a)

The name, address, and telephone number of the agency that issued the notice or order.

(b)

The date, time, and location of any public hearing or proceeding concerning the order or notice.

(c)

Information that the lessor cannot retaliate against a lessee pursuant to Section 1942.5 of the Civil Code.

(Health &
Safety Code, § 17980.6.)

The

enforcement agency, tenant, or tenant association or organization may seek and the court may order, the appointment of a receiver for the substandard building pursuant to this subdivision. In its petition to the court, the enforcement agency, tenant, or tenant association or organization shall include proof that notice of the petition was posted in a prominent place on the substandard building and mailed first-class mail to all persons with a recorded interest in the real property upon which the substandard building exists not less than three days prior to filing the petition. The petition shall be served on the owner pursuant to Article 3 (commencing with Section 415.10) of Chapter 4 of Title 5 of Part 2 of the Code of Civil Procedure. The appointment of a receiver for the substandard building pursuant to another provision of law shall not prevent an enforcement agency from seeking, or the court from appointing or replacing, a receiver pursuant to this section. In such instance, the provisions of this section shall apply in addition to the original provision of law.

(1)

In appointing a receiver, the court shall consider whether the owner has been afforded a reasonable opportunity to correct the conditions cited in the notice of violation.

(2)

The court shall not appoint any person as a receiver unless the person has demonstrated to the court their capacity and expertise to develop and supervise a viable financial and construction plan for the satisfactory rehabilitation of the building. A court may appoint as a receiver a nonprofit organization or community development corporation. In addition to the duties and powers that may be granted pursuant to this section, the nonprofit organization or community development corporation may also apply for grants to assist in the rehabilitation of the building.

(Health &

Safety Code, § 17980.7, subds. (c)(1)-(c)(2).)

REQUESTS FOR JUDICIAL NOTICE

The Court GRANTS Plaintiff's request for judicial notice. (Evid. Code, § 452, subd. (b).) However, the Court takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is

clear; it does not take judicial notice of the truth of the factual matters asserted in those documents. (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400; Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 265.)

DISCUSSION

Summary of Arguments

Plaintiff

City of Azusa argues that the property located at 300 West Bancroft Street, Azusa, California, has remained in a substandard and dangerous condition for nearly a decade, despite extensive enforcement efforts. Plaintiff contends Defendants have repeatedly failed to correct numerous violations, including trash accumulation, inoperable vehicles, overgrown vegetation, and unpermitted modifications, since at least 2016 despite repeated notices and inspections. Plaintiff argues it attempted unsuccessfully for many years to secure voluntary compliance from the owners and heirs, including formal violation notices, a nuisance hearing, and a compliance demand that went unanswered. Because the Property continues to be a nuisance per se and endangers the surrounding neighborhood, Plaintiff contends that court intervention is necessary to cure long-standing hazards.

Plaintiff

further argues that a receiver is the only effective remedy because the Defendants have demonstrated either unwillingness or inability to correct the deteriorated conditions. Plaintiff asserts that additional notices would be futile and that alternative remedies, such as City-led rehabilitation, eminent domain, or demolition, would be costly, impractical, or contrary to policy. Plaintiff contends substandard properties contribute to neighborhood decline, crime, and safety hazards, thereby justifying receivership to prevent further harm. Plaintiff argues that receivership is the least drastic and most effective option to restore the property to a safe, habitable condition and prevent ongoing irreparable harm to the community.

Analysis

The Court finds the appointment of a receiver appropriate. The evidence shows that the property

presents many health and safety issues that Defendants have not resolved for many years, including as far back as 2016, despite many notices and abatement efforts. Those health and safety issues include the accumulation of trash, debris, dead vegetation, inoperative or abandoned vehicles, plus unpermitted modifications. (Hale Decl. (7/20/26), ¶¶ 4, 21; Health & Safety Code, § 17980.7, subd. (c).) Plaintiff demonstrated compliance by sending the notice to abate to Defendants by certified mail and regular mail. (Gunzel Decl. (7/20/26), ¶ 6; Gunzel Decl. (4/23/26), ¶ 6, Ex. B[2]; Health & Safety Code, § 17980.6.) Plaintiff posted the notice of intent to seek appointment of a receiver on the property in a conspicuous place. Plaintiff also served the notice on Defendants via certified mail. (Hale Suppl. Decl. (7/20/26), Ex. C; Gunzel Suppl. Decl. (7/20/26), Ex. A.)[3] Plaintiff served the Complaint seeking appointment of a receiver on Defendants in the same manner as a summons. (Proof of Personal Service (8/6/24); Proof of Personal Service (8/28/24); Health & Safety Code, § 17980.7, subd. (c).)

The Court further finds Kevin K. Randolph of GS Strategies, Inc. to be qualified for the receivership appointment. (See generally, Randolph Decl. (7/20/26); Health & Safety Code, § 17980.7, subd. (c)(2).)

Based on the foregoing, the Court GRANTS the Motion.

CONCLUSION

The Court GRANTS Plaintiff City of Azusa's motion to appoint a receiver pursuant to California Health and Safety Code, section 17980.7(c).

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The Court refers to Defendants by their first names only to avoid confusion. No disrespect is intended.

[2] Gunzel's

July 20, 2026 Declaration references exhibits but none are attached. (See Gunzel Decl. (7/20/26), ¶¶ 6-7.) Nevertheless, Plaintiff included the May 11, 2023 compliance demand letter in its prior motion for appointment of a receiver, so the Court relies on that document in this re-filed Motion. (See Gunzel Decl. (4/23/26), ¶ 6, Ex. B.)

[3] Plaintiff was supposed to complete the posting portion of service of the Complaint at least three days before filing the Complaint, but the Court finds the recent posting on June 3, 2026, constitutes substantial compliance. (Hale Decl., ¶ 9, Ex. C; Health & Safety Code, § 17980.7, subd. (c); see *City of Santa Monica v. Gonzalez* (2008) 43 Cal.4th 905, 924-925 [substantial compliance with notice requirements under Health and Safety Code section 17980.6 held sufficient to avoid invalidation of receiver appointment under section 17980.7].)